

## 26STCV16056 26STCV16056

County: los-angeles

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Department: 516

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Case Number: 26STCV16056 Hearing Date: September 14, 2026 Dept: 516

Judge James I. Montgomery

Department 516

Hearing Date: September 14, 2026

Case Name: Doe v. McGriff Insurance

Services, et al.

Case

No.: 26STCV16056

Matter: Demurrer with Motion to Strike

Moving

Party: Defendants McGriff

Insurance Services, Truist Insurance Holdings, LLC, Truist Bank, Mark Russ, and

Teagan Chastain

Responding Party: Plaintiff Jane Doe

Tentative

Ruling: Defendants McGriff

Insurance Services, Truist Insurance Holdings, LLC, Truist Bank, Mark Russ, and

Teagan Chastain's demurrer is sustained in part, overruled in part, and

continued in part.

Defendants

McGriff Insurance Services, Truist Insurance Holdings, LLC, Truist Bank, Mark Russ, and Teagan Chastain's motion to strike is denied.

#### Plaintiff

Jane Doe ("Plaintiff") filed this action against Defendants McGriff Insurance Services, Truist Insurance Holdings, LLC, Truist Bank, Mark Russ, Teagan Chastain (collectively "Defendants"), and Does 1 to 100. The Complaint alleges seven causes of action for: (1) discrimination in violation of the Fair Employment and Housing Act ("FEHA"); (2) hostile work environment in violation of FEHA; (3) retaliation in violation of FEHA; (4) failure to provide reasonable accommodation in violation of FEHA; (5) failure to engage in the interactive process in violation of FEHA; (6) failure to prevent discrimination, harassment, or retaliation in violation of FEHA; and (7) whistleblower retaliation per Labor Code section 1102.5.

#### Defendants demur

to Plaintiff's first, second, third, fourth, fifth, and sixth causes of action for failure to allege sufficient facts, and uncertainty. Defendants also move to strike portions of Plaintiff's Complaint. Plaintiff opposes.

#### Legal Standard

A demurrer is an objection to a pleading, the grounds for which are apparent from either the face of the complaint or a matter of which the court may take judicial notice. (Code Civ. Proc., § 430.30, subd. (a); see also *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The purpose of a demurrer is to challenge the sufficiency of a pleading by raising questions of law. (Postley v. Harvey (1984) 153 Cal.App.3d 280, 286.) "In the construction of a pleading, for the purpose of determining its effect, its allegations must be liberally construed, with a view to substantial justice between the parties." (Code Civ. Proc., § 452.) The court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law . . . ." (Berkley v. Dowds (2007) 152 Cal.App.4th 518, 525.) In applying these standards, the court liberally construes the complaint to determine whether a cause of action has been stated. (Picton v. Anderson Union High School Dist. (1996) 50 Cal.App.4th 726, 733.)

"The

court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (Code Civ. Proc., § 436.) “Immaterial” or “irrelevant” matters include allegations not essential to the claim, allegations neither pertinent to nor supported by an otherwise sufficient claim or a demand for judgment requesting relief not supported by the allegations of the complaint. (Code Civ. Proc., § 431.10, subds. (b)(1)-(3).)

Analysis

Meet and  
Confer

Pursuant to Code of Civil Procedure

section 430.41, “a demurring party is required to meet and confer in person, by telephone, or video conference with the party that filed the pleading. . . .” (Code Civ. Proc. § 430.41, subd. (a).) A moving party in a motion to strike must meet and confer before filing the motion. (Code Civ. Proc. § 435.5, subd. (a).)

Defendants

contend that they emailed Plaintiff a meet and confer letter and made repeated efforts to meet and confer with Plaintiff. (Presser Decl., ¶¶ 5-7.) However, Plaintiff did not respond to the issues raised in the letter, did not provide availability, and Plaintiff only advised Defendants to file their demurrer. (Id. at ¶¶ 8-11.) It is apparent to the Court that Defendants made repeated efforts to meet and confer but it was Plaintiff who in not engaging in the required meet and confer statutory obligation pursuant to Code of Civil Procedure sections 430.41, subdivision (a), and 435.5, subdivision (a).) While the parties did not meet and confer in good faith, in the interest of judicial efficiency the Court will address the merits of Defendants’ demurrer and motion to strike.

Demurrer

Defendants

demurs to Plaintiff’s first, second, third, fourth, fifth, and sixth causes of

action on the basis of uncertainty and failure to allege sufficient facts.

## Procedural

### Issues

“Except in

a summary judgment or summary adjudication motion, no opening or responding memorandum may exceed 15 pages.” (Cal. Rules of Court, rule 3.1113(d).) “A party may apply to the court ex parte but with written notice of the application to the other parties, at least 24 hours before the memorandum is due, for permission to file a longer memorandum.” (Id. at rule 3.1113(e).)

### Plaintiff

filed a 21 page opposition to Defendants’ joint demurrer and motion to strike without the Court’s permission. Plaintiff’s opposition is procedurally improper. However, the opposition addressed both the demurrer and motion to strike improperly joined by Defendants.

Thus, the

Court will consider the entirety of Plaintiff’s opposition.

### Uncertainty

Per Code of Civil Procedure section

430.10, subdivision (f), a demurrer must be sustained if a pleading is uncertain. (Code Civ. Proc., § 430.10, subd. (f).) The term uncertain means “ambiguous and unintelligible.” (Ibid.) However, demurrers for uncertainty will not be sustained unless “the pleading is so incomprehensi[ve] that a defendant could not reasonably respond.” (A.J. Fistes Corp. v. GDL Best Contractors, Inc. (2019) 38 Cal.App.5th 677, 695 , quoting Mahan v. Charles W. Chan Ins. Agency, Inc. (2017) 14 Cal.App.5th 841, 848, fn.3 (A.J. Fistes Corp.).)

In looking

at the Complaint as a whole, it is not incomprehensible. The Complaint alleges sufficient facts for Defendants to respond.

Thus, the

Court overrules the demurrer on this basis.

Failure to Allege Sufficient

Facts

Administrative

Remedies

The

“exhaustion of the FEHA administrative remedy is a precondition to bringing a civil suit on a statutory cause of action.” (Rojo v. Kliger (1990) 52 Cal.3d 65, 83.) “In cases appropriate for administrative resolution, the exhaustion requirement serves the important policy interests embodied in the act of resolving disputes and eliminating unlawful employment practices by conciliation.” (Ibid.)

Defendants

argue that Plaintiff has not complied with the requirement because Plaintiff did not attach the CCRD right-to-sue letter and does not provide any dates to support her claim that she has complied with the requirement within the necessary period.

In

opposition, Plaintiff argues that the Court must take all allegations as true and that her allegations are sufficient. The Complaint alleges that:

47. Exhaustion of

administrative remedies: Prior to filing this action, plaintiff exhausted her administrative remedies by filing a timely administrative complaint with the California Civil Rights Department (“CCRD”), formerly known as the Department of Fair Employment and Housing (“DFEH”), and receiving a CCRD/DFEH right-to-sue letter.

(Compl., ¶ 47.)

However,

Plaintiff must plead timely exhaustion of administrative remedies, such as filing a complaint and obtaining a right-to-sue letter. (Kim v. Konad USA Distribution, Inc. (2014) 226 Cal.App.4th 1336, 1345.) Here, Plaintiff’s sole allegation is conclusory, and Plaintiff does not include the right-to-sue letter with her Complaint. While Plaintiff is not required to plead every

evidentiary fact in her Complaint, she must still meet her burden. Plaintiff attempts to correct this defect in her opposition by arguing that she received the right-to-sue letter on May 15, 2026. (Opp., 5:11-13.) Plaintiff's efforts to correct in her opposition are inadequate because the Court is limited to looking to her Complaint.

Thus, the Court sustains Defendants' demurrer for failure to allege sufficient facts regarding the administrative remedies as to all six causes of action.

#### Statute of Limitations

““When a ground for objection to a complaint, such as the statute of limitations, appears on its face or from matters of which the court may or must take judicial notice, a demurrer on that ground is proper.”” (Vaca v. Wachovia Mortgage Corp. (2011) 198 Cal.App.4th 737, 746.)

As an initial issue, Defendants group their statute of limitations argument across all causes of action, which is improper because different standards apply to each cause of action. Because Defendants grouped the statute of limitations argument in the demurrer, it is unclear which causes of action Defendants demur to based on each standard.

Defendants argue that the statute of limitations applies because Plaintiff alleges her claims are based on failure to promote. In Pollock, the Court held that in cases of failure to promote, the statute of limitations accrues once the employee obtains notice of the adverse promotion decision. (Pollock v. Tri-Modal Distribution Services, Inc. (2021) 11 Cal.5th 918, 942.) Defendant also cites Willis to argue that the continuing violation doctrine does not apply in failure-to-promote cases. (Willis v. City of Carlsbad (2020) 48 Cal.App.5th 1104, 1127.)

However, the Complaint alleges other allegations more than not being promoted. Plaintiff alleges claims of racial harassment, sexual harassment, and pregnancy, as well. (Compl., ¶¶ 16-18, 21-25, 26-28, 33-41.) Plaintiff argues that the continuing violation

doctrine applies to her harassment claims. “A continuing violation exists if: (1) the conduct occurring within the limitations period is similar in kind to the conduct that falls outside the period; (2) the conduct was reasonably frequent; and (3) it had not yet acquired a degree of permanence.” (*Dominguez v. Washington Mutual Bank* (2008) 168 Cal.App.4th 714, 721.)

Three

issues arise with Defendants’ demurrer— first, Defendants, as the moving party, must establish that the statute of limitations bars Plaintiff’s claims. Here, Defendants fail to do so by limiting their arguments to Plaintiff’s alleged denial of promotion and ignoring the other allegations in the Complaint. Second, Defendants grouped their arguments as to all causes of action. Third, because the right-to-sue letter or date is not alleged in the Complaint, the statute of limitations is not apparent on the face of the Complaint.

Thus, the

demurrer is overruled based on this argument.

Pseudonym

“Before

a party to a civil action can be permitted to use a pseudonym, the trial court must conduct a hearing and apply the overriding interest test: A party’s request for anonymity should be granted only if the court finds that an overriding interest will likely be prejudiced without use of a pseudonym, and that it is not feasible to protect the interest with less impact on the constitutional right of access. In deciding the issue the court must bear in mind the critical importance of the public’s right to access judicial proceedings. Outside of cases where anonymity is expressly permitted by statute, litigating by pseudonym should occur ‘only in the rarest of circumstances.’” (*Department of Fair Employment and Housing v. Superior Court of Santa Clara County* (2022) 82 Cal.App.5th 105, 111–112 (Department); *Santa Ana Police Officers Assn. v. City of Santa Ana* (2025) 109 Cal.App.5th 296, 308 (Santa Ana Police).)

Due to the

procedural defects by Defendants and Plaintiffs the Court will schedule an evidentiary hearing to determine whether Jane Doe will proceed under a pseudonym. Both Department and Santa Ana Police state that the proper procedure is for the Court to conduct a separate hearing. (Department,

supra, 82 Cal.App.5th at p. 111; Santa Ana Police, supra, 109 Cal.App.5th at p. 306.)

The hearing

as to whether Plaintiff can continue under the pseudonym, Jane Doe, is set for October 21, 2026, at 9:00 a.m. in department 516.

Any additional briefing by any party is due by October 7, 2026.

Motion

to Strike

Procedural Issues

As an

initial matter, the Court notes that Defendants impermissibly filed their demurrer with their motion to strike as one motion. A motion to strike is a separate responsive pleading. Additionally, Defendants have not clearly identify which arguments correlate to the motion to strike. Lastly, Defendants did not comply with California Rules of Court, rule 3.1322(a) by specifying what portions of the Complaint they moved to strike. (Cal. Rules of Court, rule 3.1322(a).)

Thus,

Defendants' motion to strike is denied.

Leave to Amend

Leave to amend must be allowed

where there is a reasonable possibility of successful amendment. (See Goodman v. Kennedy (1976) 18 Cal.3d 335, 349 [court shall not "sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment"]; Kong v. City of Hawaiian Gardens Redevelopment Agency (2002) 108 Cal.App.4th 1028, 1037 ["A demurrer should not be sustained without leave to amend if the complaint, liberally construed, can state a cause of action under any theory or if there is a reasonable possibility the defect can be cured by amendment."]; Vaccaro v. Kaiman (1998) 63 Cal.App.4th 761, 768 ["When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend."].) The burden is on the complainant to show the Court that the pleading can be successfully amended. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

Plaintiff

will be provided the opportunity to amend her Complaint and address the defects raised by the Court's ruling.

Conclusion

Defendants

McGriff Insurance Services, Truist Insurance Holdings, LLC, Truist Bank, Mark Russ, and Teagan Chastain's demurrer as to failure to allege exhaustion of administrative remedies is sustained.

Defendants

McGriff Insurance Services, Truist Insurance Holdings, LLC, Truist Bank, Mark Russ, and Teagan Chastain's demurrer as to the statute of limitations is overruled.

Defendants

McGriff Insurance Services, Truist Insurance Holdings, LLC, Truist Bank, Mark Russ, and Teagan Chastain's demurrer as to the use of a pseudonym is continued to October 21, 2026, at 9:00 a.m. in department 516. Any additional briefing by any party is due by October 7, 2026. The Court will hold a separate hearing to determine whether Plaintiff may continue under the pseudonym Jane Doe.

Defendants

McGriff Insurance Services, Truist Insurance Holdings, LLC, Truist Bank, Mark Russ, and Teagan Chastain's motion to strike is denied.

Plaintiff

will have leave to amend and must file an amended pleading by October 23, 2026.